

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 25-25

**20230930-DK-BUTTERFLY-1, INC., *Complainant* v.
CMA CGM S.A., *Respondents***

UNOPPOSED MOTION TO EXTEND DISCOVERY DEADLINES

Respondent CMA CGM S.A. (“CMA” or “Respondent”), pursuant to 46 C.F.R. § 502.141(l), hereby moves, without opposition from Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”) (collectively, the “Parties”), to extend initial discovery deadlines for the Parties to finalize the proposed Protocol regarding Electronically Stored Information (“ESI”) and Consent Motion for Entry of Protective Order. In support thereof, CMA states as follows:

1. On November 14, 2025, the ALJ entered a Scheduling Order [Docket No. 14] with the following deadlines:

EVENT	DEADLINE
Serve objections and initial responses to initial RFPs.	December 5, 2025
Serve objections and initial responses to initial Interrogatories.	December 5, 2025
Submit any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly).	December 19, 2025
Confirm substantial completion of production of documents and ESI in response to initial RFPs, including third-party discovery.	March 12, 2026
File Joint Status Report.	April 1, 2026
Complete depositions of fact witnesses.	April 21, 2026

Serve final interrogatories, requests for admission, and RFPs.	April 21, 2026
Disclose initial expert reports, if any.	May 21, 2026
Disclose rebuttal expert reports, if any.	June 22, 2026
Complete expert depositions.	July 10, 2026
Close of discovery.	July 10, 2026
Complainant's initial brief, proposed findings of fact, and appendix.	August 11, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	September 25, 2026
Complainant's reply and responses to proposed findings of fact.	October 16, 2026

2. To date, the Parties have exchanged their Rule 502.141(b) initial disclosures and Complainant served its initial requests for production and interrogatories on November 5, 2025. Respondent has not yet served written discovery in this proceeding as foundational discovery parameters remain under negotiation. Complainant provided counsel for Respondent an initial draft ESI Protocol and the Consent Motion for Entry of Protective Order for review and comment on October 8, 2025. The Parties met to discuss those documents on October 9, 2025, October 27, 2025, November 26, 2025, December 4, 2025, and are continuing negotiation over those terms.

3. Based on the foregoing, Respondent does not anticipate completing these documents in time to serve objections and initial responses to the Interrogatories and Requests for Production by the current December 5, 2025 deadline, and Complainant is currently unable to respond to written discovery as none has been served.

4. Finalization of the ESI Protocol and Protective Order are essential for the Parties to proceed with discovery in a manner consistent with the Scheduling Order. Because discovery in this matter involves substantial volumes of ESI, multiple custodians, and anticipated third-party

sources, the Parties must have agreed-upon technical and confidentiality parameters in place before serving objections and initial responses to written discovery. Without these foundational instruments, the Parties cannot meaningfully or efficiently evaluate the scope of requested ESI, assess burden, or begin collection and production

5. During these discussions, the Parties have also engaged in preliminary, good-faith settlement discussions. A brief extension will allow the Parties to finalize the necessary discovery framework while continuing to explore whether early resolution may narrow or resolve issues in dispute.

6. This requested extension is limited in scope, made in good faith, and will not affect the remaining Scheduling Order deadlines for the Parties' briefs, proposed findings of fact, or appendices. The Parties request the following revised dates:

EVENT	DEADLINE
Serve initial RFPs if not yet served.	December 15, 2026
Serve initial Interrogatories if not yet served.	December 15, 2026
Serve objections and initial responses to initial RFPs.	January 15, 2026
Serve objections and initial responses to initial Interrogatories.	January 15, 2026
Submit any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly).	January 29, 2026
Confirm substantial completion of production of documents and ESI in response to initial RFPs, including third-party discovery.	March 12, 2026
File Joint Status Report.	April 1, 2026
Complete depositions of fact witnesses.	April 21, 2026
Serve final interrogatories, requests for admission, and RFPs.	April 21, 2026

Disclose initial expert reports, if any.	May 21, 2026
Disclose rebuttal expert reports, if any.	June 22, 2026
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7. Pursuant to 46 C.F.R. § 502.141(h), counsel for Complainant conferred with counsel for Respondent, and the Parties agreed to make a good-faith effort to simultaneously negotiate a potential settlement and finalize the terms of the ESI Protocol and the proposed Protective Order.

8. This Motion is not submitted for purposes of delay, but to ensure that discovery proceeds in an orderly, defensible, and efficient manner once the essential ESI and confidentiality parameters are in place.

9. Complainant does not oppose the requested extension, and the Parties agree that good cause exists under 46 C.F.R. § 502.141 to slightly modify the initial discovery deadlines so that they may finalize the ESI Protocol and proposed Protective Order and proceed with discovery in an efficient and orderly manner.

WHEREFORE, because this Motion is unopposed and good cause exists under 46 C.F.R. § 502.141, Respondent CMA CGM S.A. respectfully request that the following revised schedule be adopted in this action:

- a. Serve initial RFPs and Interrogatories if not yet served by **December 15, 2025.**

- b. Serve objections and initial responses to initial RFPs by **January 15, 2026**;
- c. Serve objections and initial responses to initial Interrogatories by **January 15, 2026**;
- d. Submit any unresolved disputes concerning initial RFPs and Interrogatories and objections and responses thereto (after counsel confer directly) by **January 29, 2026**; and
- e. All other scheduled deadlines will remain the same.

Dated: December 5, 2025

Respectfully submitted,

CRENSHAW, WARE & MARTIN, PLC

/s/ K. Barrett Luxhoj
W. Ryan Snow, Esquire (VSB 47423)
K. Barrett Luxhoj, Esquire (VSB 86302)
CRENSHAW, WARE & MARTIN, PLC
150 West Main Street, Suite 1923
Norfolk, Virginia 23510
Telephone: (757) 623-3000
Facsimile: (757) 623-5735
wrsnow@cwm-law.com
kbluxhoj@cwm-law.com
Counsel for Respondent CMA CGM S.A.

CERTIFICATE OF SERVICE

I certify that on the 5th day of December 2025, the foregoing document was served by email on all counsel of record as follows:

Attorneys for Complainant:

Karl C. Huth, Esquire
Matthew J. Reynolds, Esquire
J. Zachery Morris, Esquire
Gregory A. Crapanzano II, Esquire
Jie Shi, Esquire
HUTH REYNOLDS LLP
41 Canyon Court
Huntington, NY 11743
huth@huthreynolds.com
Reynolds@huthreynolds.com
zmorris@huthreynolds.com
gcrapanzano@huthreynolds.com
jshi@huthreynolds.com
Counsel for Complainant

/s/ K. Barrett Luxhoj

K. Barrett Luxhoj, Esquire (VSB 86302)
CRENSHAW, WARE & MARTIN, PLC
150 West Main Street, Suite 1923
Norfolk, Virginia 23510
Telephone: (757) 623-3000
Facsimile: (757) 623-5735
kbluxhoj@cwm-law.com
Counsel for Respondent CMA CGM S.A.